IN THE COURT OF [COURT NAME]

Lawyer's Brief for Respondent in Cyber Dispute Case

Introduction

This brief is submitted on behalf of the Respondent in the above-mentioned cyber dispute case. The case involves a dispute arising from an unauthorized transaction of ₹25,000, allegedly facilitated by the sharing of an OTP (One-Time Password) with a person pretending to be from the bank.

Facts of the Case

1. The Respondent received a phone call from an individual claiming to be a representative of the bank.
2. The Respondent shared the OTP with the caller, believing it to be a legitimate request from the bank.
3. Subsequently, an unauthorized transaction of ₹25,000 was discovered.

Applicable Law

The following legal provisions are relevant to this case:

- **RTI Act 2005, Section 20**: Pertains to the penalties imposed for providing false information or misusing the Right to Information Act.
- **Prevention of Corruption Act 1988, Section 18**: Deals with the punishment for taking gratification in order, by corrupt or illegal means, to influence public duty.
- **BNSS 2023, Section 531**: Relates to the specific provisions under the BNSS Act of 2023, which may pertain to cyber fraud and its consequences.
- **BNS 2023, Section 335**: Concerns the provisions related to the punishment for criminal breach of trust.
- **BNSS 2023, Section 202**: Pertains to the intentional omission to give information to public servant by person legally bound to inform.

Relief Sought

The Respondent seeks the following relief:

- Refund of the unauthorized transaction amount of ₹25,000.
- Compensation for the mental agony and distress caused by the incident.

Conclusion

In light of the facts and applicable law, it is clear that the Respondent has been a victim of cyber fraud. The Respondent requests the Court to consider the relief sought and provide justice accordingly.

DISCLAIMER: This document is AI-generated and does not constitute legal advice.